F+L DRAFT– 5.5.25

ENERGY PROJECT PARTICIPATION EASEMENT AGREEMENT

_____ County, State of Michigan

THIS ENERGY PROJECT PARTICIPATION EASEMENT AGREEMENT (this "Agreement") is made, dated and effective as of _____, 20__ (the "Effective Date"), by and [between] [among] _____, a _____ ([together, and] [collectively, and] together with [___] successors, heirs and assigns, "Owner"), and [_____], a Delaware limited liability company (together with its transferees, successors and assigns, "Grantee"). Each of Owner and Grantee are sometimes referred to in this Agreement as a "Party" or, collectively, as the "Parties."

R E C I T A L S

A. Owner owns certain real property located in _____ County, State of Michigan, legally described on Exhibit A, attached hereto and by this reference made a part hereof (the "Premises"); and

B. Grantee desires to obtain certain non-exclusive easements and rights over the Premises, and Owner desires to grant such easements and rights, on the terms and conditions set forth herein.

NOW, THEREFORE, for good and valuable consideration, the receipt and sufficiency of which are hereby mutually acknowledged, the Parties hereby agree as follows:

1. **Grant of Easements**.

(a) Conveyance. On the terms and conditions set forth herein, Owner hereby conveys and warrants to Grantee, its successors and assigns, a non-exclusive easement and right (the "Easement"), with respect to any [wind energy generation] [solar energy generation] [battery energy storage system] project developed, owned or operated by Grantee in the vicinity of the Premises (the "Project"), inclusive of the following:

(i) [Wind] [Insolation] Rights. The right and privilege to use, maintain and capture the free and unobstructed [flow of wind] [sunlight and unobstructed passage of incident solar radiation] over and across the Premises to Grantee's Project facilities in the vicinity of the Premises. Owner's activities and any grant of rights Owner makes to any person or entity, whether located on the Premises or elsewhere, shall not, currently or prospectively, interfere with the [flow of wind] [solar irradiance or insolation] to, cause a decrease in the output or efficiency of, or otherwise interfere with Grantee's operation of Grantee's Project facilities in the vicinity of the Premises;

(ii) Project Effects. The right and privilege to cast shadows and reflect glare onto the Premises, whether intermittent or constant; to generate and maintain audible noise levels on and above the Premises, and for any other any audio, aural, visual, view, light, noise, vibration, [air turbulence, wake,] electrical, electromagnetic, radio interference or other effect resulting, directly or indirectly, from the construction, installation, maintenance or operation of the Project in the vicinity of the Premises, including construction inconveniences; and

(iii) Setback Requirements. Owner's consent to [(x) Grantee's inclusion of the Premises in any applicable [wind] [solar] energy overlay district established in connection with or

applicable to the Project, and (y)] Grantee's siting of Project facilities at any location upon property in the vicinity of the Premises, outside the Premises, and to the fullest extent applicable and permitted by law, Owner's waiver of enforcement of any and all applicable state or local rules, ordinances, zoning regulations or other requirements or permits related to the siting Project facilities upon property in the vicinity of the Premises (collectively, "Setback Requirements"), including Setback Requirements applicable to the Project facilities from property lines, residences and other structures and improvements, and consent to setbacks for the Project facilities being less than required by such Setback Requirements. [Owner agrees that the Premises shall be considered participating property for purposes of property line setbacks for the Project facilities.]

(b) Easement in Gross. The Easement and other rights granted by Owner in this Agreement are an easement in gross for the benefit of Grantee, its successors and assigns, there being no real property benefiting from the Easement and other rights granted in this Agreement, such Easement and other rights being independent of any other lands or estates or interests in lands. The Easement and other rights granted by Owner under this Agreement extend to and upon Owner's interest in any appendages, strips and gores of land appurtenant to and adjoining the Premises.

2. **Term**.

(a) Term. The term of this Agreement and the Easement shall commence on the Effective Date and continue for the following described periods (collectively, the "Term"):

(i) Development Term. This Agreement and the Easement shall be for an initial term (the "Development Term") commencing on the Effective Date and continuing until the earlier to occur of: (A) the date on which Grantee begins selling[, in commercial quantities,] electrical energy [generated] [stored] by substantially all of the [wind energy generating] [solar energy generating] [battery energy storage system] facilities to be included in the Project to a third party power purchaser, as declared by Grantee, or such earlier date as Grantee shall determine, or (B) the _____ (____) anniversary of the Effective Date (the "Operations Date").

(ii) Operations Term. Provided that Grantee has not fully surrendered or terminated this Agreement, upon the expiration of the Development Term, the term of this Agreement and the Easement shall automatically extend for an additional _____ (____) year term (the "Operations Term").

(iii) Extended Term. Provided that Grantee has not fully surrendered or terminated this Agreement, then on or before the expiration of the Operations Term, Grantee may, at its option, extend the term of this Agreement and the Easement for an additional _____ (____) year period (the "Extended Term"). Grantee may exercise its option to extend this Agreement and the Easement for the Extended Term by giving Owner written notice thereof on or before [the date that is one hundred and eighty (180) days prior to] the expiration of the Operations Term.

(b) Grantee Termination. Notwithstanding anything to the contrary set forth in this Agreement, Grantee shall have the right at any time to terminate this Agreement and all of the rights, duties and obligations of the Parties under this Agreement, effective upon thirty (30) days' prior written notice given by Grantee to Owner. In the event this Agreement is terminated by Grantee in accordance with this paragraph, Owner authorizes Grantee to execute and record a notice of termination evidencing such termination.

3. **Payments**. In consideration of the rights granted in this Agreement, Grantee shall pay to Owner those amounts set forth herein. The Parties agree that in no event shall Exhibit B be recorded unless both Parties specifically agree in writing. Notwithstanding anything in this Agreement to the contrary, Grantee shall have no obligation to make any payment to Owner otherwise required under this Agreement until Owner has returned to Grantee a completed Internal Revenue Service Form W-9, such Form W-9 to either (i) have been provided by Grantee to Owner prior to execution of this Agreement, or (ii) be provided by Grantee to Owner promptly upon execution of this Agreement.

4. **Owner's Representations, Warranties and Covenants**. Owner hereby represents, warrants and covenants as follows:

(a) Owner's Authority. Owner is the sole owner of the Premises, has good and marketable title to the Premises, and has the unrestricted right and authority to execute this Agreement and to grant Grantee the rights granted in this Agreement. Grantee shall have the right to quietly and peaceably hold, possess and enjoy the Easement for the Term of this Agreement, without hindrance or molestation, and Owner shall defend Grantee's right to the same against the claims of all persons. When executed by Owner, this Agreement constitutes a valid and binding agreement enforceable against Owner in accordance with its terms.

(b) No Interference. Owner shall not interfere with, and shall not allow any other party to interfere with, the Easement or Grantee's rights under this Agreement.

(c) Cooperation. Owner shall assist and fully cooperate with Grantee (including signing in Owner's name, if necessary), at no expense to Owner, in applying for, complying with or obtaining any land use permits and approvals, building permits, environmental reviews, or any other permits, licenses, approvals or consents required or desired by Grantee for the financing, construction, installation, replacement, relocation, maintenance, repair, operation or removal of the Project or any Project facilities, consistent with this Agreement.

(d) Express Waiver. [Without limiting the provisions of Section 1(a) above,] Owner hereby irrevocably waives, to the extent permitted by law, (i) enforcement of any applicable setback requirements respecting the location of any Grantee improvements on or near the Premises that are reasonably necessary, in Grantee's sole and absolute discretion, to carry out Grantee's Project activities on or near the Premises; and (ii) any claim arising from, or any express or implied expectation or requirement regarding, the level of noise produced from Grantee's construction, maintenance, or operation of the Project.

(e) Liens. Except as may be disclosed in the Real Property Records of the county in which the Premises are located, Owner represents to the best of Owner's knowledge that there are no recorded or unrecorded liens, encumbrances, leases (including oil, gas and/or other mineral interests), easements, licenses, rights of way, mortgages, deeds of trust, or other exceptions that could interfere with Grantee's Easement or Project operations in the vicinity of the Premises, including mechanics' liens. If any of the foregoing arise, including mechanics' liens, that may, in Grantee's reasonable determination, interfere with Grantee's Easement or the development and operation of the Project, then Owner shall fully cooperate and assist Grantee in removing or limiting such interference, including obtaining a subordination and non-disturbance agreement where Grantee deems it necessary, with terms and conditions reasonably requested by Grantee to protect its rights hereunder, from each party that holds such rights (recorded or unrecorded). In the case of monetary liens such as mechanics' liens, Owner agrees to bond over any such liens in an amount that may be reasonably requested by Grantee. Owner agrees that Owner shall execute and deliver to Grantee any documents reasonably required by the title insurance company and/or a financing party within five (5) business days after presentation of said documents by Grantee; provided, however, in

no event shall such documents materially increase any obligation or materially decrease any right of Owner hereunder.

(f) Taxes and Assessments. Owner shall pay all taxes, assessments, or other governmental charges that shall or may during the Term be imposed on, or arise in connection with, the Premises when due and if Owner fails to make such payments when due, then Grantee may, but shall not be obligated to, pay the taxing authorities the entire amount due on the tax bill, including any interest and/or penalties and obtain reimbursement for such amount paid on behalf of Owner plus interest (computed from the date of full payment) at a rate equal to the sum of: (i) two percent (2%) per annum; plus, (ii) the prime lending rate as from time to time may be published by The Wall Street Journal under the "Money Rates" section; provided, that in no event shall such total interest exceed the maximum rate permitted by applicable law. If Grantee pays taxes, assessments, and/or real property taxes on behalf of Owner that are Owner's obligation hereunder, Grantee may offset the amount of such payments against amounts due Owner under this Agreement.

5. **Grantee's Representations, Warranties and Covenants**. Grantee hereby represents, warrants and covenants as follows: Grantee has the unrestricted right and authority to execute this Agreement. Each person signing this Agreement on behalf of Grantee is authorized to do so. Upon execution by all Parties hereto, this Agreement shall constitute a valid and binding agreement enforceable against Grantee in accordance with its terms.

6. **Default and Remedies**. If either Party defaults in performance of an obligation under this Agreement the non-defaulting Party shall not have the right to exercise any remedies hereunder if the default is cured within sixty (60) days of receiving written notice of such default specifying in detail the default and the requested remedy (the "Notice of Default"). Subject to the limitations set forth in the last sentence of this paragraph and Section 9, should a default remain uncured beyond the applicable cure periods, the non-defaulting Party shall have and shall be entitled to exercise any remedy available at law or equity, including, without limitation, a suit for specific performance of any obligations set forth in this Agreement or any appropriate injunctive or other equitable relief, or for damages resulting from such default. Notwithstanding the foregoing, anything to the contrary contained in this Agreement, or any rights at law or in equity, in no event shall any non-monetary default of this Agreement beyond applicable cure periods terminate, or entitle any Party to terminate, this Agreement or any Easement or right granted hereunder, provided that in the event of any breach or threatened breach, either Party shall have the right to apply for the entry of an immediate order to restrain or enjoin the breach and otherwise specifically to enforce the provisions of this Agreement.

7. **Assignment**.

(a) Collateral Assignments. Grantee shall have the absolute right in its sole and exclusive discretion, without obtaining the consent of Owner, to do any of the following with respect to financing all or any portion of the Premises: mortgage, encumber, hypothecate, pledge or transfer to one or more Mortgagees any and all of the rights granted hereunder, including the easements granted in Section 1, and/or any or all right or interest of Grantee in the Premises.

(b) Non-Collateral Assignments. Grantee shall have the right, without obtaining the consent of Owner, to sell, convey, lease, assign or transfer (including granting co-easements, separate easements, subeasements) any or all of its rights hereunder in and to all of the Premises. Grantee shall be relieved of all of its obligations arising under this Agreement from and after the effective date of such assignment, provided such rights and obligations have been assumed by such transferee.

(c) Acquisition of Interest. The acquisition of all or any interest in Grantee by another person shall not require the consent of Owner or constitute a breach of any provision of this Agreement and Owner shall recognize the person as Grantee's proper successor.

(d) Owner Assignment. Owner shall not sell, convey, assign, or transfer any of its interest in this Agreement, other than pursuant to a sale, conveyance, or transfer of the fee simple interest in the Premises, or as a collateral assignment to a bona fide lender with a mortgage in the fee simple interest of the Premises. Owner shall not reserve unto itself any interest in this Agreement as to any part of the Premises that is conveyed, and any conveyance of the Premises shall include a full assignment of all rights in this Agreement with respect to the part of the Premises conveyed. In the event that Owner so sells, conveys, assigns, or transfers such interest in the Premises, Owner shall deliver written notice of the same to Grantee within fifteen (15) business days after the effective date thereof, which notice shall contain the then-current contact information (name, mailing address, email address, and telephone number) for Owner's successor in interest.

8. **Mortgagee Protection**. In the event that any mortgage, deed of trust, financing statement, or other security interest (each, a "Mortgage") in this Agreement or the Easements, or any portion thereof or interest therein, is entered into or granted by Grantee, then any person who is the mortgagee, grantee, beneficiary or holder of a Mortgage (each, a "Mortgagee") shall, for so long as its Mortgage is in existence and until the lien thereof has been extinguished, be entitled to the protections set forth in this Section 8. Grantee shall send written notice to Owner of the name and address of any such Mortgagee; provided that failure of Grantee to give notice of any such Mortgagee shall not constitute a default under this Agreement and shall not invalidate such Mortgage.

(a) Mortgagee's Right to Possession, Right to Acquire and Right to Assign. Any Mortgagee shall have the absolute right: (i) to assign its security interest; (ii) to enforce its lien and acquire title to the easement estate by any lawful means; and (iii) to acquire the easement estate by foreclosure or by an assignment in lieu of foreclosure and thereafter to assign or transfer the easement estate to a third party. Owner's consent shall not be required for the acquisition of the encumbered easement or subeasement estate by a third party who acquires the same by foreclosure or assignment in lieu of foreclosure.

(b) Notice of Default; Opportunity to Cure. As a precondition to exercising any rights or remedies as a result of any default of Grantee, Owner shall give notice of Grantee's failure to perform to each Mortgagee, of which it has notice, concurrently with delivery of such notice to Grantee. In the event Owner gives such notice of failure to perform, the following provisions shall apply:

(i) The Mortgagee shall have the same period after receipt of the notice of failure to perform to remedy the failure to perform, or cause the same to be remedied, as is given to Grantee, plus, in each instance, sixty (60) days, for a total of one hundred twenty (120) days after receipt of the notice of failure to perform. The Mortgagee shall have the absolute right to substitute itself for Grantee and perform the duties of Grantee hereunder for purposes of curing such failure to perform. Owner expressly consents to such substitution, agrees to accept such performance.

(ii) During any period of possession of the Easement by a Mortgagee (or a receiver requested by such Mortgagee) and/or during the pendency of any foreclosure proceedings instituted by a Mortgagee, the Mortgagee shall pay or cause to be paid all monetary charges payable by Grantee hereunder which have accrued and are unpaid at the commencement of said period and those which accrue thereafter during said period. Following acquisition of Grantee's easement estate by the Mortgagee or its assignee or designee as a result of either foreclosure or acceptance of an assignment and/or deed in lieu of foreclosure, or by a purchaser at a foreclosure sale, this

Agreement shall continue in full force and effect and the Mortgagee or party acquiring title to Grantee's easement estate shall, as promptly as reasonably possible, commence the cure of all of Grantee's defaults which are reasonably susceptible of being cured by the Mortgagee or party acquiring title, hereunder and thereafter diligently process such cure to completion, whereupon such defaults shall be deemed cured without incurring any default hereunder.

(iii) Any Mortgagee or other party who acquires Grantee's easement interest pursuant to foreclosure or assignment in lieu of foreclosure shall be liable to perform the obligations imposed on Grantee by this Agreement for such interest so long as such Mortgagee or other party has ownership of the easement estate or possession of the Easement.

(iv) Neither the bankruptcy nor the insolvency of Grantee shall be grounds for terminating this Agreement as long as all material obligations of Grantee under the terms of this Agreement are performed by the Mortgagee in accordance with the terms hereunder.

(v) Nothing herein shall be construed to extend this Agreement beyond the Term or to require a Mortgagee to continue foreclosure proceedings after a default has been cured. If the default is cured and the Mortgagee discontinues foreclosure proceedings, this Agreement shall continue in full force and effect.

(c) New Agreement to Mortgagee. If this Agreement terminates because of Grantee's default or if the easement estate is foreclosed upon, or if this Agreement is rejected or disaffirmed pursuant to bankruptcy law or other law affecting creditors' rights, Owner shall, upon written request from any Mortgagee within ninety (90) days after such event, enter into a new agreement for the Premises on the following terms and conditions

(i) The terms of the new agreement shall commence on the date of termination, foreclosure, rejection or disaffirmance and shall continue for the remainder of the Term, at the same monetary charges and subject to the same terms and conditions set forth in this Agreement.

(ii) The new agreement shall be executed within thirty (30) days after receipt by Owner of written notice of the Mortgagee's election to enter a new agreement, provided said Mortgagee pays to Owner all monetary charges payable by Grantee under the terms of this Agreement up to the date of execution of the new agreement, as if this Agreement had not been terminated, foreclosed, rejected or disaffirmed. Any new agreement granted to the Mortgagee shall enjoy the same priority as this Agreement over any lien, encumbrances or other interest created by Owner.

(iii) If more than one Mortgagee makes a written request for a new agreement pursuant hereto, the new agreement shall be delivered to the Mortgagee requesting such new agreement whose Mortgage is prior in lien, and the written request of any other Mortgagee whose lien is subordinate shall be void and of no further force or effect.

(iv) At the option of the Mortgagee, the new agreement may be executed by a designee of such Mortgagee without the Mortgagee assuming the burdens and obligations of Grantee thereunder.

(v) The provisions of this Section 8(c) shall survive the termination, rejection or disaffirmance of this Agreement and shall continue in full force and effect thereafter to the same extent as if this Section 8(c) were a separate and independent contract made by Owner, Grantee

and such Mortgagee, and, from the effective date of such termination, rejection or disaffirmation of this Agreement to the date of execution and delivery of such new agreement, such Mortgagee may use and enjoy the Easement without hindrance by Owner or any person claiming by, through or under Owner, provided that all of the conditions for a new agreement as set forth herein are complied with.

(d) No Waiver. No payment made to Owner by a Mortgagee shall constitute an agreement that such payment was, in fact, due under the terms of the Agreement; and a Mortgagee, having made any payment to Owner pursuant to Owner's wrongful, improper or mistaken notice or demand, shall be entitled to the return of any such payment.

(e) Mortgagee's Consent to Amendment, Termination or Surrender. Notwithstanding any provision of this Agreement to the contrary, the Parties agree that so long as there exists an unpaid Mortgage, this Agreement shall not be modified or amended and Owner shall not accept a surrender of the Easement or any part thereof or accept a cancellation, termination or release of this Agreement from Grantee prior to expiration of the Term without the prior written consent of the Mortgagee. This provision is for the express benefit of and shall be enforceable by such Mortgagee.

9. **Miscellaneous**.

(a) Confidentiality. To the fullest extent allowed by applicable law, Owner shall maintain in the strictest confidence, and Owner shall require each third party to which Owner is permitted to disclose pursuant to this section to maintain in the strictest confidence, for the sole benefit of Grantee, all information pertaining to the financial terms of or payments under this Agreement, unless such information either (i) is in the public domain by reason of prior publication through no act or omission of Owner or its employees, contractors or agents, or (ii) was already known to Owner at the time of disclosure and that Owner is free to use or disclose without breach of any obligation to any person or entity. To the fullest extent permitted by applicable law, Owner shall not publish or otherwise disclose it to others, or permit its use by others for their benefit or to the detriment of Grantee. Notwithstanding the foregoing, Owner may provide information as required or appropriate to attorneys, accountants, lenders, or third parties who may be assisting Owner or with whom Owner may be negotiating in connection with the Premises, Owner's financial or other planning, any prospective purchaser of or lenders for the Premises, or as may be necessary to enforce this Agreement; provided that Owner advises the party receiving the information of the confidentiality of the information and obtains the agreement of said party not to disclose such information.

(b) Successors and Assigns. This Agreement shall inure to the benefit of and be binding upon Owner and Grantee and, to the extent provided in any assignment or other transfer permitted hereunder, any transferee, and their respective heirs, transferees, successors and assigns, and all persons claiming under them. References to Grantee in this Agreement shall be deemed to also include transferees of Grantee that hold a direct ownership interest in the Easement or this Agreement and actually are exercising rights under the Easement or this Agreement to the extent consistent with such interest.

(c) Easement to Run with the Land. This Agreement shall run with the land and shall be binding on and shall inure to the benefit of the Parties, hereto, their heirs, executors, administrators, successors, and assigns.

(d) Recording of Agreement. Owner and Grantee agree to execute a Memorandum of Energy Project Participation Easement Agreement in the form attached as Exhibit C hereto (the "Memorandum") and a Real Estate Valuation Affidavit in the form attached as Exhibit D hereto. Grantee may record the Memorandum at Grantee's expense.

(e) Notices. All notices or other communications required or permitted by this Agreement, including payments to Owner, shall be in writing and shall be deemed given when personally delivered to Owner or Grantee, or in lieu of such personal delivery services, five (5) days after deposit in the United States mail, first class, postage prepaid, certified, addressed as follows:

If to Owner:	If to Grantee:
_____	[_____]
_____	c/o Invenergy LLC
_____	One South Wacker Drive, Suite 1500
Phone: _____	Chicago, Illinois 60606
	Attn: General Counsel

Any Party may change its address for purposes of this paragraph by giving written notice of such change to the other Party in the manner provided in this paragraph.

(f) Entire Agreement; Amendments. This Agreement, together with all exhibits referenced herein and attached hereto, constitutes the entire agreement between Owner and Grantee respecting the subject matter contained herein. Any agreement, understanding or representation respecting the Premises, the Easement, or any other matter referenced in this Agreement not expressly set forth in this Agreement or a subsequent writing signed by both Parties is null and void. This Agreement shall not be modified or amended except in a writing signed by both Parties. No purported modifications or amendments of this Agreement, including, without limitation, any oral agreement (even if supported by new consideration), course of conduct or absence of a response to a unilateral communication, shall be binding on either Party. Owner shall cooperate with Grantee in amending this Agreement from time to time to (i) include any provision that may be reasonably requested by Grantee for the purpose of implementing the provisions contained in this Agreement, (ii) to correct an error in this Agreement, (iii) to amend the legal description attached to this agreement (including by replacing such legal description with a revised description prepared or provided by Grantee's title company), (v) to cause this Agreement to comply with applicable law or (vi) for the purpose of preserving the security interest of, or satisfying the request of, any actual or potential transferee or Mortgagee.

(g) Legal Matters. This Agreement shall be governed by and interpreted in accordance with the laws of the State of Michigan. If the Parties are unable to resolve amicably any dispute arising out of, or in connection with, this Agreement, the Parties agree that such dispute shall be resolved in the state courts located in the county in which the Premises is situated. The Parties agree that any rule of construction to the effect that ambiguities are to be resolved in favor of either Party shall not be employed in the interpretation of this Agreement and is hereby waived. The prevailing Party in any action or proceeding for the enforcement, protection or establishment of any right or remedy under this Agreement shall be entitled to recover its reasonable attorneys' fees and costs in connection with such action or proceeding from the non-prevailing Party.

(h) Partial Invalidity. Should any provision of this Agreement be held, in a final and unappealable decision by a court of competent jurisdiction, to be either invalid, void or unenforceable, the remaining provisions hereof shall remain in full force and effect, unimpaired by the holding. Notwithstanding any other provision of this Agreement, the Parties agree that in no event shall the Term be longer than, respectively, the longest period permitted by applicable law.

(i) Estoppel Certificates, Consents to Assignment, Non-Disturbance Agreements. Owner shall promptly execute such estoppel certificates (certifying as to such matters as Grantee may reasonably request, including, without limitation, that no default or failure to perform then exists under this

Agreement, if such be the case) and/or consents to assignment (whether or not such consent is actually required) and/or non-disturbance agreements as Grantee, any transferee or any Mortgagee may reasonably request from time to time. At Grantee's or the applicable transferee's or Mortgagee's option, such certificates, consents and agreements may be recorded in the relevant recording office. Owner hereby consents to such recording. The failure of Owner to deliver any estoppel certificate within fifteen (15) days after written request therefor shall be conclusive evidence that (i) this Agreement is in full force and effect and has not been modified; (ii) any amounts payable by Grantee to Owner have been paid through the date of such written request; (iii) there are no uncured defaults by Grantee; and (iv) the other certifications requested in the estoppel certificate, are in fact, true and correct.

(j) No Waiver; No Abandonment; No Overburdening. No waiver of any right under this Agreement shall be effective for any purpose unless it is in writing and is signed by the Party hereto possessing the right, nor shall any such waiver be construed to be a waiver of any subsequent right, term or provision of this Agreement. Further, (i) no act or failure to act on the part of Grantee shall be deemed to constitute an abandonment, surrender or termination of the Easement or any interest under this Agreement, except upon recordation by Grantee of a quitclaim deed or release specifically releasing such Easement or interest or conveying such Easement or interest back to Owner, (ii) nonuse of the Easement or any easement or interest hereunder shall not prevent the future use of the entire scope thereof; and (iii) no use of or improvement related to the Project, and no assignment, transfer or grant under Section 7 or otherwise, or use resulting from any such assignment, transfer or grant, shall, separately or in the aggregate, constitute an overburdening of the Easement or any easement or interest hereunder.

(k) No Merger. There shall be no merger of any easement estate created by this Agreement with the fee estate of the Premises by reason of the fact that any such easement estate or any interest therein may be held, directly or indirectly, by or for the account of any person or persons who shall own the fee estate or have any interest therein, and no such merger shall occur unless and until all persons at the time having such interest in the fee estate of the Premises and all persons (including, without limitation, Mortgagee) having an interest in any easement estate created by this Agreement shall join in a written instrument effecting such merger and shall duly record the same.

(l) Joint Owners. If one or more persons, partnerships, corporations, trusts or other entities execute this Agreement as Owner or have an ownership interest in the Premises from time to time, the obligations of Owner under this Agreement shall be the joint and several obligations of each such person, partnership, corporation, trust or other entity. All such persons, partnerships, corporations, trusts or other entities agree that they shall be solely responsible for allocating any payments made under this Agreement between themselves and that Grantee shall have no obligation to make any allocation.

(m) No Partnership. Nothing contained in this Agreement shall be deemed or construed by the Parties or by any third person to create the relationship of principal and agent, partnership, joint venture or any other association between Owner and Grantee.

(n) Headings. The headings of the paragraphs of this Agreement are not a part of this Agreement and shall have no effect upon the construction or interpretation of any part thereof.

(o) Counterparts. This Agreement, and any amendment hereto, may be executed in any number of counterparts and by each Party on separate counterparts, each of which when so executed and delivered shall be deemed an original and all of which taken together shall constitute one and the same instrument.

(p) Waiver of Right to Trial by Jury. EACH OF THE PARTIES KNOWINGLY, VOLUNTARILY AND INTENTIONALLY WAIVES THE RIGHT TO A TRIAL BY JURY IN

RESPECT OF ANY LITIGATION BASED ON THIS AGREEMENT, OR ARISING OUT OF, UNDER OR IN CONNECTION WITH THIS AGREEMENT AND ANY AGREEMENT CONTEMPLATED TO BE EXECUTED IN CONJUNCTION HEREWITH, OR ANY COURSE OF CONDUCT, COURSE OF DEALING, STATEMENTS (WHETHER VERBAL OR WRITTEN) OR ACTIONS OF ANY PARTY HERETO. EACH OF THE PARTIES TO THIS AGREEMENT WAIVES ANY RIGHT TO CONSOLIDATE ANY ACTION IN WHICH A JURY TRIAL HAS BEEN WAIVED WITH ANY OTHER ACTION IN WHICH A JURY TRIAL CANNOT OR HAS NOT BEEN WAIVED. THIS PROVISION IS A MATERIAL INDUCEMENT TO EACH OF THE PARTIES FOR ENTERING INTO THIS AGREEMENT.

(q) Public Official. Owner acknowledges that its receipt of monetary and other good and valuable consideration hereunder may represent a conflict of interest if Owner is a government employee or otherwise serves on a governmental entity with decision-making authority (a "Public Official") as to any rights Grantee may seek, or as to any obligations that may be imposed upon Grantee in order to develop and/or operate the Project ("Development Rights"), and Owner hereby agrees to (i) recuse him/herself from all such decisions related to Grantee's Development Rights unless such recusal is prohibited by law or is not reasonably practicable considering the obligations of such Public Official's position and (ii) recuse him/herself from all such decisions related to Grantee's Development Rights if such recusal is required by law. If Owner is not required pursuant to (i) or (ii) above to recuse him/herself from a decision related to Grantee's Development Rights, Owner shall, in advance of any vote or other official action on the Development Rights, disclose the existence of this Agreement (but not the financial terms therein) at an open meeting of the relevant governmental entity Owner serves on as a Public Official. Additionally, if Owner is a Public Official and any of Owner's spouse, child or other dependent has a financial interest in the development and/or operation of the Project, Owner shall disclose such relationship (but not the financial terms thereof) at an open meeting of the relevant governmental entity Owner serves on as a Public Official, prior to participation in any decision related to Grantee's Development Rights.

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IN WITNESS WHEREOF, the Parties have executed and delivered this Agreement as of the date first set forth above.

OWNER:

_____

By:_____
Name:_____
Title:_____

_____
By: _____, a [single] [married] person

GRANTEE:

[_____],
a Delaware limited liability company

By: Invenergy LLC, its Manager

By:_____
Name:_____
Title:_____

EXHIBIT A

Description of the Premises

Parcel Number	County	Township/ Range	Section	Acreage
[_____]	[_____]	[_____]/[_____]	[_____]	[_____]
			Total	[_____]

[_____]

Parcel ID: [_____]

EXHIBIT B

Payment Addendum

A. Payments. In consideration of the rights granted in this Agreement, Grantee shall pay to Owner the following amounts:

1. Initial Fee. Within forty-five (45) days after the Effective Date, Grantee shall pay to Owner a one-time fee of _____ Dollars ($_____), which fee is earned as of the Effective Date.

2. Development Term Fee. Beginning on the first anniversary of the Effective Date and ending on the Operations Date, Grantee shall pay Owner an annual fee of _____ Dollars ($_____) per acre of the Premises (the "Development Term Fee"). Payment of the Development Term Fee shall be made annually in advance with the first payment due on or before sixty (60) days following the first anniversary of the Effective Date and each subsequent payment shall be due on or before each anniversary of the Effective Date, as applicable. Any amounts paid to Owner in advance and in excess of the annual fee actually due and accruing hereunder shall be credited against the next payment due to Owner under this Agreement.

3. Operating Fees. Upon the Operations Date, and for each year during the Term thereafter, Grantee shall pay to Owner the greater of the amounts resulting from the calculations in the following subsections (a) or (b) of this Section (collectively, the "Operating Fees"):

(a) An annual amount as shown on the table below for each acre of the Premises then subject to this Agreement:

Year Following Operations Date	Operating Fee (per acre)
1-10	$[_____]
11-20	$[_____]
21+	$[_____]

or

(b) An annual amount as shown on the table below:

Year Following Operations Date	Minimum Payment (per acre)
1-10	$[_____]
11-20	$[_____]
21+	$[_____]

Payments of annual Operating Fees shall be due within thirty (30) days of the Operations Date and each one-year anniversary date of the Operations Date.

B. Payment Instructions. All payments issued hereunder will be paid to the Owner, as set forth in this Agreement, or its permitted successors and assigns. If Owner is comprised of more than one person or entity, then all payments will be issued by a single check payable to all such persons or entities, unless otherwise indicated below. Each person or entity holding record title to the Premises hereby acknowledges and agrees that all payments are legally permitted to be made as set forth below and that no other party shall

have any right to such payments or to contest the payments and allocations as set forth below. Notwithstanding the foregoing, in the event Owner transfers all or any its fee title interest in the Premises, Grantee is authorized to continue to make payments to Owner as specified in the Easement Agreement or the successor for which Grantee has previously received the Notice Documents (as hereafter defined) until sixty (60) days after Grantee receives all of the following from the new successor Owner(s) of the Premises (individually and collectively, "Successor Owner"): (i) notice of the transfer of any fee title interest in the Premises with the Successor Owner's name and address for communications and payment, (ii) a completed Internal Revenue Service Form W-9 for the Successor Owner, and (iii) the executed document evidencing the transfer of fee title interest in the Premises to the Successor Owner(s) (collectively, "Notice Documents"). In the event that the Notice Documents are not delivered to Grantee and a disagreement arises among the prior or current-documented Owner(s) and any Successor Owner, the disagreement shall be resolved between such prior or current-documented Owner(s) and any Successor Owner, neither Owner shall have any right or claim against Grantee, each Owner shall hold Grantee harmless and indemnify Grantee from the same, and Grantee shall have no obligation to change to whom the payments are made until and unless the Notice Documents are delivered to Grantee accompanied by satisfactory evidence that the disagreement has been resolved. Each person receiving payment hereunder agrees to fully indemnify and hold harmless Grantee against claims by any third party in connection with its payments hereunder to the person/entities set forth herein. ***Check one below:***

☐ A single check should be issued payable to all persons/entities comprising the Owner.

☐ Separate checks should be issued to each Owner as set forth below:

Owner:	[_____]	[_____]
Payment Allocation:	[_____]%	[_____]%

EXHIBIT C

Memorandum of Energy Project Participation Easement Agreement

[form begins on next page]

MEMORANDUM OF ENERGY PROJECT PARTICIPATION EASEMENT AGREEMENT[1]

THIS MEMORANDUM OF ENERGY PROJECT PARTICIPATION EASEMENT AGREEMENT (this "Memorandum"), is made, dated and effective as of _____, 20__ (the "Effective Date"), by and [between] [among] _____, a _____ ([together, and] [collectively, and] together with [___] successors, heirs and assigns, "Owner"), whose address is _____, and [_____], a Delaware limited liability company (together with its transferees, successors and assigns, "Grantee"), whose address is One South Wacker Drive, Suite 1500, Chicago, IL 60606, with regards to the following:

1. Owner and Grantee did enter into that certain Energy Project Participation Easement Agreement of even date herewith (as hereafter amended, restated or supplemented from time to time, the "Agreement"), which affects the real property located in _____ County, Michigan, as more particularly described in Exhibit A attached hereto (the "Premises"). Capitalized terms used and not defined herein have the meaning given the same in the Agreement.

2. Owner and Grantee desire, by their execution of this Memorandum, to set forth certain terms and conditions of the Agreement in a manner suitable for recording, in order to provide record notice of the Agreement and Grantee's rights in and to the land subject to the Agreement, as provided therein and herein.

3. For good and valuable consideration, the receipt and sufficiency of which is acknowledged [SEE REAL ESTATE TRANSFER TAX VALUATION AFFIDAVIT], upon the terms and conditions of the Agreement, Owner has granted and hereby grants, warrants and conveys to Grantee on, over, under, across and through the Premises, a non-exclusive easement and right (the "Easement"), with respect to any [wind energy generation] [solar energy generation] [battery energy storage system] project developed, owned or operated by Grantee in the vicinity of the Premises (the "Project"), inclusive of the following:

(i) The right and privilege to use, maintain and capture the free and unobstructed [flow of wind] [sunlight and unobstructed passage of incident solar radiation] over and across the Premises to Grantee's Project facilities in the vicinity of the Premises. Owner's activities and any grant of rights Owner makes to any person or entity, whether located on the Premises or elsewhere, shall not, currently or prospectively, interfere with the [flow of wind] [solar irradiance or insolation] to, cause a decrease in the output or efficiency of, or otherwise interfere with Grantee's operation of Grantee's Project facilities in the vicinity of the Premises;

[1] ***Note to Draft***: Conform memorandum to easement particulars, as finalized for use, particularly as to grant clause and term provisions.

(ii) The right and privilege to cast shadows and reflect glare onto the Premises, whether intermittent or constant; to generate and maintain audible noise levels on and above the Premises, and for any other any audio, aural, visual, view, light, noise, vibration, [air turbulence, wake,] electrical, electromagnetic, radio interference or other effect resulting, directly or indirectly, from the construction, installation, maintenance or operation of the Project in the vicinity of the Premises, including construction inconveniences; and

(iii) Setback Requirements. Owner's consent to [(x) Grantee's inclusion of the Premises in any applicable [wind] [solar] energy overlay district established in connection with or applicable to the Project, and (y)] Grantee's siting of Project facilities at any location upon property in the vicinity of the Premises, outside the Premises, and to the fullest extent applicable and permitted by law, Owner's waiver of enforcement of any and all applicable state or local rules, ordinances, zoning regulations or other requirements or permits related to the siting Project facilities upon property in the vicinity of the Premises (collectively, "Setback Requirements"), including Setback Requirements applicable to the Project facilities from property lines, residences and other structures and improvements, and consent to setbacks for the Project facilities being less than required by such Setback Requirements. [Owner agrees that the Premises shall be considered participating property for purposes of property line setbacks for the Project facilities.]

The Easement and other rights granted by Owner in the Agreement are an easement in gross for the benefit of Grantee, its successors and assigns, there being no real property benefiting from the Easement and other rights granted in the Agreement, such Easement and other rights being independent of any other lands or estates or interests in lands. The Easement and other rights granted by Owner under the Agreement extend to and upon Owner's interest in any appendages, strips and gores of land appurtenant to and adjoining the Premises.

4. Unless extended or earlier terminated, as provided in the Agreement, the Agreement and the Easement shall be for a term (the "Term") commencing on the Effective Date and continuing until the _____ (____) anniversary of the anniversary of the Operations Date. Grantee shall have the right, exercisable upon written notice given to Owner prior to the expiration of the Term, to extend the term of the Agreement and the Easement, and the Term, for an additional period of _____ (____) years.

5. This Memorandum does not supersede, modify, amend or otherwise change the terms, conditions or covenants of the Agreement, and Owner and Grantee executed and are recording this Memorandum solely for the purpose of providing constructive notice of the Agreement and Grantee's rights thereunder. The terms, conditions and covenants of the Agreement are incorporated herein by reference as though fully set forth herein. This Memorandum shall not, in any manner or form whatsoever, alter, modify or vary the terms, covenants and conditions of the Agreement.

6. This Memorandum may be executed in counterparts, each of which shall be deemed an original and all of which when taken together shall constitute one and the same document.

7. This Memorandum shall also bind and benefit, as the case may be, the heirs, legal representatives, assigns and successors of the respective parties hereto, and all covenants, conditions and agreements contained herein shall be construed as covenants running with the land.

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK]

IN WITNESS WHEREOF, the parties have executed this Memorandum to be effective as of the date first written above.

OWNER:

_____

By:_____
Name:_____
Title:_____

_____
By: _____, a [single] [married] person

GRANTEE:

[_____],
a Delaware limited liability company

By: Invenergy LLC, its Manager

By:_____
Name:_____
Title:_____

ACKNOWLEDGMENT OF OWNER

STATE OF _____)
) SS.
COUNTY OF _____)

For an individual: This instrument was acknowledged before me this ____ day of _____, 20___, by _____, an individual.

For a married couple: This instrument was acknowledged before me this ____ day of _____, 20___, by _____ and _____, husband and wife.

For an entity: This instrument was acknowledged before me this ____ day of _____, 20___, by _____, as _____ of _____, a _____, on behalf of the _____.

(S E A L)

_____
Name: _____
Notary Public, State of _____
My Commission Expires: _____

ACKNOWLEDGMENT OF GRANTEE

STATE OF ILLINOIS)
) SS.
COUNTY OF COOK)

This instrument was acknowledged before me this ____ day of _____, 20__, by _____, as _____ of Invenergy LLC, Manager of [Insert Invenergy Project Company], a Delaware limited liability company, on behalf of the limited liability company.

(S E A L)

_____
Name: _____
Notary Public, State of Illinois
My Commission Expires: _____

Prepared by:

_____
_____
_____

After recording return to:
Invenergy LLC
One South Wacker Drive, Suite 1500
Chicago, Illinois 60606
Attention: Land Administration

EXHIBIT A TO MEMORANDUM
OF ENERGY PROJECT PARTICIPATION EASEMENT AGREEMENT

Description of the Premises

Parcel Number	County	Township/ Range	Section	Acreage
[_____]	[_____]	[_____]/[_____]	[_____]	[_____]
			Total	[_____]

[_____]

Parcel ID: [_____]

EXHIBIT D

Real Estate Transfer Valuation Affidavit

[form begins on next page]

Michigan Department of Treasury
2705 (Rev. 11-16)

Real Estate Transfer Tax Valuation Affidavit

Issued under authority of Public Act 134 of 1966 and 330 of 1993 as amended.

This form must be filed with the Register of Deeds for the county where the property is located either when you choose not to enter the amount paid for real estate on the deed or when you contract for the transfer or acquisition of a controlling interest in an entity if the real property owned by that entity comprises 90% or more of the fair market value of the assets of the entity determined in accordance with generally accepted accounting principles. "Controlling interest" means more than 80% of the total value of all classes of stock of a corporation; more than 80% of the total interest in capital and profits of a partnership, association, limited liability company, or other unincorporated form of doing business; or more than 80% of the beneficial interest in a trust. The tax is based on the value of the real property transferred and is collected at the time the contract or instrument of conveyance is submitted for recording. "Value" means the current or fair market worth in terms of legal monetary exchange at the time of the transfer.

1. County of Property	2. City or Township of Property
[ ]	[ ]

3. Names of ALL Sellers			
Seller's Mailing	City	State	ZIP Code
[ ]	[ ]	[ ]	[ ]

4. Names of ALL Purchasers			
[ ], a Delaware limited liability company			
Purchaser's Mailing Address(es)	City	State	ZIP Code
One South Wacker Drive, Suite 1500	Chicago	IL	60606

5. Type and Date of

☐ Land Contract Date of Contract: _____ ☐ Deed Date: _____ **

☐ Contracts for the transfer or acquisition of a controlling interest in entity where 90% or more of the FMV of the assets are real property. The Contract may be attached to this form when it is filed with the Register of Deeds.

** **Memorandum of Energy Project Participation Easement Agreement, dated** [ ]

6. Cash Payment and/or Debt Relieved	7. Amount of Mortgage/Land Contract	8. Total Consideration (Add lines 6 & 7)
$ [ ]		$ [ ]
9. Amount of County Tax	**10. Amount of State Tax**	**11. Total Revenue Stamps (Add lines 9 & 10)**
$ [ ]	$ [ ]	$ [ ]

12. If consideration is less than market value, state market value.

13. Legal Description of Real Estate Transferred

SEE ATTACHED LEGAL DESCRIPTION, INCORPORATED BY REFERENCE HERE

CERTIFICATION

I certify that the information above is true and complete to the best of *my knowledge.*

Seller's Signature	If signer is other than the seller, print name and title
Seller's Signature	If Signer is other than the seller, print name and title
Seller's Signature	If Signer is other than the seller, print name and title
Seller's Signature	If Signer is other than the seller, print name and title

NOTARIZATION

Subscribed and sworn to me:	Notary Public State of Michigan; County of:	On this date:	My commission expires on:

Real Estate Valuation Affidavit
Description of the Property

Parcel Number	County	Township/ Range	Section	Acreage
[_____]	[_____]	[_____]/[_____]	[_____]	[_____]
			Total	[_____]

[_____]

Parcel ID: [_____]